

Bihar Prevention of the outbreak of Epidemic of Kala-Azar Regulation, 1977

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[Bihar Prevention of the outbreak of Epidemic of Kala-Azar Regulation, 1977](#)

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S.O. 1346, dated 3rd October, 1977, published in Bihar Gazette, Extraordinary, dated October, 3, 1977. - Whereas the Governor of Bihar is satisfied that the area comprised within the limits of the whole of the State of Bihar is threatened with an outbreak of an epidemic of Kala-Azar and the ordinary provisions of the law for the time being in force are insufficient to prevent the spread of the said disease.

Now, Therefore, in exercise of the powers conferred by sub-section (1) of Section 2 of the Epidemic Diseases Act, 1897 (3 of 1897), the Governor of Bihar is pleased to make the following temporary Regulations to prevent outbreak and spread of Kala-Azar within the said areas namely-

1.

These Regulations may be called the Bihar Prevention of the outbreak of Epidemic of Kala-Azar Regulation, 1977.

2.

These Regulations shall be deemed to have come into force with effect from 1st September, 1977 and shall remain in force until the 31st December, 1978.

3.

In these Regulations until there is anything repugnant in the subject or context,-

(a)

'Kala-Azar' means long continued fever with enlargement of spleen and general debility.

(b)

'Civil Surgeons' means the Civil Surgeons of the districts in Bihar.

(c)

'Dwelling places' means any building, house, hut shed, tent or other structure for whatsoever purpose and of whatsoever materials constructed which is or may be used for human and animal habitation.

(d)

'Health Staff' means the Director of Health Services, Deputy Director of Health Services, Regional Chief Malaria Officer, Zonal Malaria Officers of Administrative Zones, Entomologist, Asst. Entomologist, District Malaria Officers, Additional C.M.Os, Asstt. Malaria Officers, Civil Assistant Surgeons, Malaria Inspectors, Sanitary Inspectors, Basic Health Workers, Health Workers, Laboratory Technicians, Majdoors having jurisdiction within the area comprised within the limits of the State of Bihar;

(e)

'Infected Area' means the areas comprised within the limits of the State of Bihar;

(f)

'Local Medical Officer' means the Doctor incharge of the area or any member of the State Health Services;

(g)

'Magistrate' means the District Magistrate or any other Magistrate authorised by the District Magistrate in his behalf;

(h)

'Medical Practitioner' include Vaidya, Hakim or Homeopath; and

(i)

'Police Staff' includes a Sub-Inspector of Police and Constable.

4.

The owner or the occupier of any dwelling place in the infected area in which any case or any suspected case of Kala-Azar occurs and the Medical Practitioners attending the said case shall within twenty-four hours give information regarding the case to officers or staff of the National Malaria Eradication Programme or the local Medical Officer.

5.

The Civil Surgeon, Regional Deputy Director of Health Services, Officer of the Health Services, Chief Malaria Officer, Bihar, Zonal Malaria Officers, Bihar, Entomologist, Asstt. Entomologist, District Malaria Officers, Civil Assistant Surgeons or any officer authorised by any of them on his behalf may-

(i)

examine any person who is or is suspected to be suffering from Kala-Azar or who in his opinion may spread Kala-Azar on and may for that purpose enter any dwelling place shall permit such entry;

(ii)

require the owner or the occupier to segregate (sic) the patient and arrange for the treatment and collect blood specimen, spray the dwelling with insecticides and take other measures for the control of this disease.

6.

The owner or the occupier of any dwelling place in the infected areas in which any person is or is suspected to be suffering from Kala-Azar shall comply within the time specified by the Civil Surgeon, Regional Deputy Director of Health Services, Chief Malaria Officer, Bihar Zonal Malaria Officers of Administrative Zones, Entomologist, Assistant Entomologist, District Malaria Officer, Civil Assistant Surgeons or any other Officers authorised by any of them on his behalf with any direction or notice that may be issued by any of the said Officers with regard to-

(1)

Residential indoor spray of insecticides.

(2)

Administration of Kala-Azar Drugs.

(3)

Collection of Blood Samples.

(4)

Any other measures that may be deemed necessary.

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